

-

File No.: EXP202309925

Sanctioning Procedure No. PS/00407/2023

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for the Protection of Data and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for the Protection of Data on May 31, 2023. The complaint is directed against ALL IN DIGITAL MARKETING, S.L. with NIF B88369178 (hereinafter, the respondent or ALL IN ZONE). The reasons for the complaint are as follows:

"I bought a laptop from this online company in February, and I never expressly accepted to receive commercial communications. After receiving several of them by email, on March 20 I clicked on the link at the end of the emails to cancel the subscription, and I unsubscribed. I did not receive any confirmation email, but I took a screenshot. On the 23rd, I received another commercial communication by email, and I went through the same process to unsubscribe again. I took another screenshot. As of today, I am still receiving commercial communications. This is the URL of the 'Cancel subscription' link at the end of each email (...). Date of the last spam email received: 30/05/23." Along with the complaint, the following is provided:

- Header and body of the emails dated March 23, March 28, April 13, April 17, April 20, April 25, May 2, May 11, and May 16, 2023. All of them appear to be sent from the address allzoners@allzone.es directed to the email address ***EMAIL.1 belonging to the complainant, inviting him to participate in various product or service raffles, containing at the end of each email a link that would allow, in principle, to cancel the subscription to these emails.

- Two requests for cancellation of the subscription executed by the complainant dated March 20 and March 23, 2023, consisting of a photograph of the computer screen indicating in English that the subscription has been successfully canceled.

SECOND: On June 22, 2023, the complainant submitted a new document to include a new email and header sent by the respondent from the same address on June 8, 15, 16, and 22, 2023, inviting him again to participate in a raffle.

THIRD: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on July 25, 2023, as stated in the certificate in the file.

Once the notification was carried out, and considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an additional attempt at paper notification was made for informational purposes, in accordance with the provisions of Article 42 of the LPACAP -by postal mail-, which was returned as refused on August 3, 2023, according to the delivery proof in the file.

FOURTH: On August 31, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FIFTH: On October 4, 2023, the Director of the Spanish Agency for the Protection of Data agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 21 of the LSSI, classified in Article 38.4.d) of the LSSI.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established

in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the respondent submitted a written statement on November 2, 2023, in which, in summary, it states the following:

- That the client A.A.A. registered on the website allzone.es on 01/02/2023, for the placement of his order reference (...) and on 22/02/2023 the following order with reference (...), accepting all the general conditions of purchase, privacy policy, subscription to the newsletter and offers from partners.
- That the client has requested to subscribe and unsubscribe on various occasions from the newsletter, which they suspect has been done deliberately with the intention of attributing a breach of the right to object to the respondent, given the pre-existence of previous conflicts between the parties.
- That ALL IN ZONE has processed and made effective all the requests for cancellation of the newsletter subscription made by the complainant since his initial registration (03/20/23 and 03/23/23), with subsequent electronic communications being sent because the complainant re-subscribed to the service on three occasions after the cancellation requests (March 22, 2023, and March 25). In virtue, the

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
3/19

An email dated March 23 was sent since, after unsubscribing on that day, the client requested to resubscribe on the same day, and the notifications received after March 25, 2023, may be occurring because the client requested to resubscribe on that date, without having requested to unsubscribe again.

Along with the allegations, 3 screenshots of the client file with the history of subscriptions and unsubscriptions are provided (DOC 1), as well as from the client area of the ALL IN ZONE website where it indicates that the claimant can activate the receipt of the newsletter (DOC 2), and the privacy policy section of the website (DOC 3).

SEVENTH: In order to verify the truthfulness of the statements made by the respondent, on January 22, 2023, the respondent is notified of the opening of a trial period, in which, in addition to incorporating into the procedure all documentation presented up to that moment:

1. A diligence of the screenshot of the login form and the registration form of the website allzone.es dated January 18, 2024, is added to the procedure.
2. The respondent is required to provide, within a period of 10 business days, various documents aimed at proving whether the claimant registered and requested to subscribe to the newsletter on the 3 occasions stated by the respondent (01-02-2023, 22-03-23, and 25-03-23). Specifically, the following:
 - Justification of the contract signed with the claimant, including the consent for the provision by the claimant, contractual conditions, and proof of having accepted the privacy policy provided in their written allegations.
 - Documentary proof of the consent granted by the claimant for the sending of commercial communications at the time of contracting, and of the subsequent subscription requests referred to in their writing.
 - Screenshot from their systems showing the logs of the claimant's requests for subscription to the newsletters, and an interpretation of those logs.
 - Report on the IP address from which the registration as a client in the name of the claimant was made, and the subscription requests made by the claimant from their account referred to in their writing.
 - Report on the registration process to subscribe and unsubscribe from the newsletter that led to the sending of the commercial communications sent to the claimant. Screenshots must be attached, detailing each step to be followed by the service contractors.
 - Report on the purchasing procedure carried out by the claimant, detailing the steps to be followed to acquire the product.
 - Printout of all data held by your entity associated with the claimant.

EIGHTH: On January 24, 2024, the respondent entity submits a written response to the trial

agreement, in which it provides 5 documents:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
4/19

- Report on the purchasing procedure carried out by the claimant, detailing the steps to follow to acquire the product DOC1.
- Privacy policy, DOC 2.
- Screenshot of customer registration on the website, DOC 3.
- Complete customer file, DOC 4.
- Print screen of all data held by your entity associated with the claimant, DOC 5.

NINTH: On 01/02/2024, the respondent submits a written notice of change of email address for communication purposes.

TENTH: Upon completion of the period for allegations and evidence, a Proposal for Resolution is issued on 25/04/24, in which it is proposed to maintain the infringement and sanction agreed upon in the initiation agreement of the sanctioning procedure, and a list of documents in the procedure is attached as an annex.

ELEVENTH: The proposal for resolution is notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), with a notification date of 09/05/24. The respondent submits allegations against the proposal for resolution on May 15, 2024, reiterating the same arguments that were presented in the response to the evidence submitted on 24/01/24, again providing the same 5 documents.

TWELFTH: According to the Axesor tool, on July 2, 2024, a commercial report on the respondent ALL IN DIGITAL MARKETING is issued, according to which this entity is a small company established in 2019, with a turnover of (...)€ in the last financial year presented in 2021.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: As acknowledged by both the claimant and the respondent, the claimant A.A.A. registered on the website allzone.es on 01/02/2023, to place his order reference (...), making an online purchase of a laptop on 22/02/2023, through the respondent's website, where he accepted all the general purchase conditions and the privacy policy.

SECOND: As acknowledged by both the claimant and the respondent, the claimant initially requested to unsubscribe from the newsletter and associated offers on 20/03/2023. However, on 23/03/2023, he received another electronic communication regarding participation in a raffle sent by ALL IN ZONE.

THIRD: As acknowledged by both the claimant and the respondent, on the same day 23/03/2023, the claimant again requested to unsubscribe by clicking the "cancel subscription" option that appears in the offer email received on that day, as a free option made available to the customer to cancel his subscription to the newsletter and associated offers at any time he wishes.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
5/19

FOURTH: The claimant has submitted the following emails, the sending of which is acknowledged by the respondent, all of which were sent following the request for unsubscribing from the newsletter and offers made on March 23, 2023: March 23, March 28, April 13, April 17, April 20, April 25, May 2, May 11, May 16, 2023, as well as on June 8, June 15, June 16, and June 22, 2023. All of them are sent from the address allzoners@allzone.es directed to the email address ***EMAIL.1 belonging to the

claimant, inviting him to participate in various product or service raffles, containing at the end of each email a link that would allow, in principle, the cancellation of the subscription to these emails.

LEGAL GROUNDS

I

Competence and Procedure

According to the provisions of Article 43.1 of Law 34/2002, of July 11, on information society services and electronic commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competences attributed to the Spanish Data Protection Agency by other laws" establishes that: "The provisions in Title VIII and its development rules shall apply to the procedures that the Spanish Data Protection Agency must process in exercising the competences attributed to it by other laws."

II

Preliminary Issues. Applicable Regulations to Commercial Communications Made via Email or Equivalent Electronic Means

Currently, "spam" refers to all types of unsolicited communication made electronically. Thus, "spam" is understood as any unsolicited message that usually aims to offer, market, or attempt to awaken interest regarding a product, service, or company. Although it can be done through various means, the most commonly used is email.

This conduct is particularly serious when carried out en masse. The sending of commercial messages without prior consent is prohibited by Spanish legislation.

The low cost of sending emails via the internet or through mobile telephony (SMS and MMS), its possible anonymity, the speed with which it reaches recipients, and the possibilities it offers in terms of the volume of transmissions have allowed this practice to be carried out abusively and indiscriminately. Commercial communications by electronic means are regulated in the LSSI, starting from a prohibition of sending, with exceptions, in its Article 21, which states the following:

Article 21. Prohibition of commercial communications made via email or equivalent electronic communication means.

1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited.
2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar to those initially contracted with the client.

In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When the communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such address is prohibited.

Thus, in its Article 21.1, the LSSI expressly prohibits "the sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients." That is, commercial communications aimed at the direct or indirect promotion of the goods or services of a company, organization, or person engaged in commercial, industrial, artisanal, or professional activities are disallowed without the express consent of the recipient.

However, this prohibition finds its exception in section 2 of the aforementioned Article 21, which authorizes the sending of commercial communications when "there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details."

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
7/19

of the recipient's contact and will use it for sending commercial communications regarding products or services of its own company that are similar to those that were initially contracted with the client."

In this regard, according to these regulations, consent must not only be prior, specific, and unequivocal, but it must also be informed. This information must be complete and accurate regarding the sector of activity from which the recipient may receive advertising, with a warning about the right to deny or withdraw consent. This information, thus configured, must be taken as a necessary prerequisite to grant validity to the expression of will of the affected party.

III

Response to the Allegations against the initiation agreement and assessment of the evidence provided on 01/24/24

In this case, the respondent has presented allegations against the initiation agreement and responded to the instructor's evidence agreement through writings dated 11/02/23 regarding the initiation, and a response to evidence dated 01/24/24, respectively. Furthermore, it has submitted allegations against the instructor's proposed resolution on 05/15/24, so it is appropriate to distinguish the response to both allegations separately for greater clarity in the exposition.

First, regarding the allegations made against the initiation agreement of this file and the evidence presented on 01/24/24, the respondent argues that the sending of the 13 commercial communications referred to in this file was carried out with the prior consent of the claimant, since, despite having unsubscribed on two occasions (March 20 and 23, 2023), the claimant re-subscribed on three other occasions, reactivating the newsletter by checking the corresponding box within their client area on the website.

On January 18, 2024, the instructor agreed to evidence, requiring the respondent to provide the documents referenced in the factual background of this Resolution, which are not reiterated for procedural economy, all of which were aimed at having the respondent prove that the claimant gave their consent to receive such commercial communications on the 3 occasions referred to by the respondent (March 20, 2023, upon contracting, and March 22 and 25, 2023, upon activating the box for receiving the newsletter and offers from their web client area, as stated by the respondent).

In response to said evidence agreement, the respondent submitted the following 5 documents on January 24, 2024:

- Report on the purchase procedure carried out by the claimant, detailing the steps to follow to acquire the product DOC1.
- Privacy policy, DOC 2.
- Screenshot of client registration on the website, DOC 3.
- Complete client file, DOC 4.
- Print screen of all data held by the entity associated with the claimant, DOC 5.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
8/19

Once examined, the assessment of the evidence made by the instructor in her proposal for resolution is shared, as well as the arguments that led to the conclusion that the consent of the claimant was not proven, allegedly granted through the aforementioned subscriptions, and to dismiss the allegations made by the respondent.

As stated in the Proposal for Resolution of this file, in the present case, the respondent defends in its

allegations against the initiation agreement presented on 2/11/23 and in its response to the evidence agreement of 24/01/24 that it has sent all the commercial communications referred to by the claimant but has not violated the provisions of Article 21 of the LSSI, since it has limited itself to sending commercial communications to the claimant only during the periods when he was not unsubscribed from the newsletter and offers service (hereinafter, the newsletter), maintaining that he has unsubscribed on two occasions and subscribed on three others.

It should be established as proven the following issues that are not disputed, as they are acknowledged by both parties:

- The claimant purchased a laptop online from the respondent on February 22, 2023, entering into a contract via the respondent's website, accepting the terms of the contract and the privacy policy, as this was necessary to contract the product.
- The respondent sent all the commercial communications that have been provided by the claimant and are included in the Fourth Proven Fact of this Proposal for Resolution (all from the year 2023): March 23, March 28, April 13, April 17, April 20, April 25, May 2, May 11, May 16, 2023, June 8, June 15, June 16, and June 22.
- All electronic commercial communications included the possibility of canceling the subscription through a simple and free procedure that was included in the electronic commercial communication via a link.
- The claimant requested to unsubscribe from receiving further commercial communications on two occasions through that link (March 20 and March 23, 2023).

It should be clarified that although there was a prior contractual relationship between the parties, the exception provided in Article 21.2 of the LSSI, which refers to the fact that sending commercial communications without prior request is not prohibited: "when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and used them to send commercial communications regarding products or services of its own company that are similar to those that were initially the subject of the contract with the customer," is not applicable in this case. In the present case, the claimant contracted a laptop through the respondent's website and received commercial communications to participate in draws for products similar to those that were the subject of the contract (computers), but he also received emails to participate in trips, which cannot...

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
9/19

considered similar products, therefore the application of this exception does not apply to them.

In the event that the claim concerned commercial communications received between the date of contracting (22-2-23) and the first request to unsubscribe from these communications, made on 20-3-23, this exception could apply to communications referring to computer or electronic products, although not to those referring to travel.

However, the present claim refers to commercial communications received from 23-3-23 onwards, that is, after the aforementioned request to unsubscribe or oppose the service, so it is understood that all communications referred to by the claimant would fall outside the scope of this exception, being prohibited unless it is proven that the claimant requested their receipt.

Therefore, the contentious issue that must be focused on in this procedure is whether all electronic communications received from 23-3-23 were sent because the claimant expressly requested them, activating the subscription to the newsletter and offers on 3 occasions, as indicated by the respondent, which refers to the following chronology in its allegations of November 2, 2023:

1. That the client A.A.A. registered on the website allzone.es on 01/02/2023, for the execution of his order reference (...) and on 22/02/2023 the following order with reference (...), accepting all general purchase conditions, privacy policy, subscription to the newsletter and offers from partners.
2. That as shown in the client file, attached screenshot (DOC1), the client unsubscribed from the newsletter and associated offers on 20/03/2023, and from that precise moment, emails associated with offers and news ceased to be sent.

3. But on 22/03/2023, the client clicked the option to subscribe again to the aforementioned subscription (this option is available in his client area to activate and deactivate whenever he wishes). We attach a sample screenshot (DOC2), an action that is reflected in the history of his client registration file, which is why we assume that on 23/03/2023 he starts receiving emails with offers again.

4. On the same day 23/03/2023, the client clicks the "unsubscribe" option that appears in each offer email received, as a free option made available to the client to cancel his subscription to the newsletter and associated offers whenever he wishes.

5. On 25/03/2023, we see the last update indicating that the client clicked again that he wishes to subscribe to the newsletter and offers from partners, and after this date, we have no record of any further unsubscription from the service."

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
10/19

In this regard, there is no doubt that -as stated in the Proposal for Resolution- it is the respondent that bears the burden of proof to demonstrate that the claimant consented to receive new electronic communications, requesting the subscription on February 22, 2023 (when purchasing the computer) and subsequently on March 22 and 25, 2023 (when activating the subscription to the newsletter), since the existence of these 3 consents or requests would be a disputed fact that could be impeditive, extinguishing, or excluding of liability, as alleged by the respondent. Especially considering that it is the only party in a position to prove the alleged activations of the newsletter subscription that generate the commercial communications at issue in this procedure, given that these are carried out using its web platform, which is obligated to document the customer's consent.

Therefore, it is the obligation of the respondent, as a provider of information society services that enters into electronic contracts and sends electronic commercial communications to those who have contracted its products or services, to document, register, and retain such consents.

During the proceedings, it was agreed to open a period of evidence requiring the respondent to provide certain documentation in order to verify the accuracy of these subscriptions (requests for commercial communications), to which the respondent replied on January 24, 2024, with a written submission in which it made allegations and provided only part of the requested documents. Three of the required documents were submitted in the evidence agreement, such as document 1 (explaining the online contracting process), the privacy policy (document 2), and the registered customer data (document 5), but none of them prove that the claimant requested the receipt of these commercial emails. The remaining documents provided are screenshots (hereinafter, "screenshots") from its computer system, which cannot serve as documentary justification of consent for the reasons that will be expressed below.

From the examination of all the documentation submitted in the proceedings, in the written allegations and in the subsequent provision of evidence, it is deduced that the respondent has not succeeded in proving the impeditive fact of liability that would imply the confirmation that it was the claimant who requested the receipt of these 13 commercial communications. As noted in the proposal for resolution:

- The respondent limits itself to providing "screenshots" of the customer file from its internal computer system in which the subscription dates referred to in its allegations are recorded, which, by themselves, lack conclusive evidentiary effectiveness.

Having been required to provide the "screenshot of its systems where the logs of the claimant's requests for subscription to the newsletters are visible, and interpretation of such logs," considering that the customer file submitted in the allegations does not constitute objective proof of the veracity of the data contained therein, the respondent does not provide such logs, limiting itself to submitting again a screenshot of the "MG customer information file" as document 4, from its computer system.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid

In this document, the data of connections associated with different IDs appear, without any explanation of what the ID corresponds to, and in any case, why the 3 connections that are recorded on the dates when the bulletin was allegedly activated (February 22, 2023, March 23, 2023, and March 25, 2023) are listed solely as "direct link," from which it cannot be deduced that their content was the activation of the subscription. Therefore, no evidence is provided of the computer certainty of having activated the subscription on any of the 3 occasions.

-

Specifically, it is not proven that the claimant checked the box of the bulletin during the process of purchasing the laptop.

The respondent details and explains in Document 1 of the writing dated January 24, 2024, how the online contracting process works through registration on the website, stating that the request for the subscription and unsubscription of commercial communications is made voluntarily by each customer, by clicking the option of the so-called "newsletter and commercial offers" (hereinafter, the bulletin) that appears before completing the purchase process (step 6).

However, no screenshot of that step 6 is provided, which is precisely the determining step, in which the customer voluntarily decides to receive the aforementioned bulletin, nor what would be more relevant to prove their claims, since no justification is presented that the claimant gave their consent to receive commercial communications by clicking that option.

Furthermore, in Document 1, it is maintained that there is a step 7 in the purchase process in which a confirmation email regarding the purchase is sent to the customer, but this is also not provided to justify what the contracting conditions were.

-

It has also not been proven that there is the possibility of activating the subscription to the bulletin from the web client area, as the respondent claims the claimant did later. From the documents and screenshots provided, it can be deduced that the initial registration page allows for the activation of the bulletin, but not from the login page (verified by this Agency and attached to the procedure on January 18, 2024). And no screenshot of the client area has been provided that certifies the possibility of activating this subscription link for the bulletin.

-

But, more importantly, it has not been proven that the claimant has given their consent to receive these commercial communications, regardless of the method of subscription or activation, which must be documented and in the possession of the respondent.

Thus, in accordance with what has been repeatedly maintained by the jurisprudence, in rulings such as SAN 2875/2016, from the Administrative Litigation Chamber, dated July 15, 2016, which states the following:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

"Regarding the screenshot of the website www.lotonazo.com in 2005, it is true that this Chamber declared in the Judgment of April 9, 2008 - appeal no. 235/2006 - that screenshots or digital reflections do not prove the provision of consent: '...it is nothing more than a simple digital "screenshot," which does not prove anything nor provides any relevant information when it comes to proving the consent of the data subject.' The Judgment of this Chamber of March 17, 2015 - appeal no. 103/2014 - expresses the same sentiment."

Consequently, from all the above, it is deduced that the documents provided by the defendant during the phase prior to the resolution proposal could not yield evidence that the claimant gave their consent to receive commercial communications, requesting registration on the 2 occasions following the requests for the two cancellations of the service (March 20 and 23, 2023). The defendant has

acknowledged that they sent 13 commercial communications subsequent to these two cancellation requests, and since the burden of proof lies with them to demonstrate the consents that the claimant theoretically provided, their allegations should be dismissed, and the commission of the infringement attributed in the initiation agreement should be considered proven, for failing to comply with the provisions of Article 21 of the LSSI.

IV

Response to the allegations against the resolution proposal and assessment of the evidence.

The allegations presented on 05/15/24 against the resolution proposal issued during the instruction phase are limited to reiterating the same arguments made in the allegations against the initiation agreement and providing the same 5 documents that were submitted on 01/24/24 during the evidence phase. Therefore, the conclusions and assessment of the evidence must be identical to those already made. It is appropriate to respond to the following statement that the defendant adds regarding the assessment of the evidence made in the resolution proposal, stating the following:

"That we understood in your request for documentation as you asked, that we should have a physical relationship to demonstrate the acceptance of the contractual clauses or subscriptions generated digitally in our online store. We provide the evidence generated online, not in person and which is evidently digital, therefore screenshots and/or HTML pages where the acceptance of subscriptions or contractual clauses is observed, and which are downloaded from our platform to provide to your request in any of the existing digital formats, JPG, PDF, GIF, etc., should be accepted by you as provided evidence.

We highlight: a) Digital evidence: all acceptance or contractual relationship in our online store is generated digitally. This means that there is no physical documentary proof with a handwritten signature, as a digital acceptance mechanism is used through the marking of an acceptance checkbox. This method is widely recognized and accepted in the legal and commercial field, and meets the legal requirements to establish valid consent. b) Legal validity: The transactions carried out and the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

13/19

Digitally accepted contractual agreements have full legal validity and are recognized as authentic legal documents. Current legislation supports the validity and use of electronic methods for the formation of contracts, including the ticking of acceptance boxes. Therefore, the absence of physical documentary evidence does not invalidate or affect the validity of the established contractual agreements.

In this regard, it should be noted that the defendant is based on a fundamental error in its argumentation, as the subscription to the newsletter (request for receipt of commercial communications according to Article 21 of the LSSI) cannot be classified as a service contract, since for a contract to exist between parties—whether electronic or paper—the requirements established in Article 1261 of the Civil Code must be met, which states the following:

"There is no contract unless the following requirements are met:

1. Consent of the contracting parties.
2. A certain object that is the subject of the contract.
3. A cause for the obligation that is established."

Thus, we are not in the presence of a contract, since, in addition to the fact that the certain object of the contract has not been specified due to the lack of documented contractual clauses for the hypothetical newsletter service and there is no cause that transforms the consent given into a contract for legal purposes. Since in this case there is no remuneration from either party nor any mere liberality that could be classified as a donation.

Therefore, it is worth recalling that Article 1274 of the Civil Code states: "In onerous contracts, the cause is understood, for each contracting party, as the provision or promise of a thing or service by the

other party; in remunerative contracts, the service or benefit that is compensated, and in purely charitable contracts, the mere liberality of the benefactor.”

In this case, we are not in the presence of a contract that activates the newsletter, but rather in the fulfillment of a legal requirement by the defendant entity in its capacity as a provider of information society services consisting of the sending of electronic communications, which is generally prohibited by Article 21 of the LSSI, requiring prior consent from the interested party for its possible execution.

When the initial agreement and the proposal for resolution of this sanctioning procedure refer to the fact that the defendant must prove that the claimant gave their consent to receive new commercial communications—by ticking the newsletter box from their client area on the website—on the dates alleged by the defendant (March 20 and 23, 2023), it aims to verify whether the defendant has complied with the legal requirement of prior consent to receive commercial communications. Since this is a requirement of Article 21 of the LSSI, non-compliance would imply that the 13 commercial emails sent to the claimant—after they opposed their receipt by clicking the unsubscribe link on two occasions—constituted a violation of the prohibition established in Article 21.1 of the LSSI. And in this regard, consent can be exercised in person through...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

14/19

the handwritten signature of documents, or by electronic or digital means, but in all cases, the service provider shall be obliged to prove that it has obtained the same, which requires it to document it adequately, since: (I) only the party sending the commercial communications is charged with the obligation to obtain this consent under the LSSI; (ii) the respondent is legally obliged to prove that it has obtained such consent, as the data controller responsible for the processing of personal data involved in the sending of such emails (based on the provisions of Articles 7 and 4.2 of the GDPR, as well as 5.2 of the GDPR); (iii) and, in turn, it is responsible for the web platform that triggers the sending of commercial communications through the newsletter, so only the respondent is in a position to establish an adequate system or mechanisms capable of proving that the interested party provided their consent to receive such communications, registering and archiving it with the necessary guarantees to ensure that it was the interested party who granted such consent freely, specifically, informed, and unequivocally, on the dates during which the aforementioned emails were sent.

In this case, the respondent does not provide any justification for the consent allegedly granted by the claimant to receive these communications again, with the screenshot of the customer record not being considered as such, for the reasons outlined in the Proposal for Resolution of this file. It should not be forgotten that jurisprudence has repeatedly indicated that when the data subject denies consent for the processing of their data, the burden of proof lies with the party asserting its existence, and the data controller must collect and retain the necessary documentation to prove the consent of the data subject. This is supported by the National Court Judgment of May 31, 2006 (Rec. 539/2004): “On the other hand, it is the data controller (see, among others, the judgment of this Chamber of October 25, 2002, Rec. 185/2001) who must ensure that the person from whom consent is requested actually gives it, and that this person giving consent is indeed the holder of that personal data, and must retain proof of compliance with the obligation available to the Administration, which is responsible for ensuring compliance with the Law.” In this case, the evidence in the proceedings does not prove consent, especially when the claimant denies having given consent for the sending of commercial communications.

Furthermore, there is ample evidence supporting the claimant's version, who denies having requested the subscription to the newsletter service, such as the fact that – despite being requested in the evidence agreement by the instructor and insisted upon in the proposal for resolution – the respondent presents the same documentation and still fails to prove that it is possible to activate said newsletter (request the sending of commercial communications for the purposes provided in Article 21 of the

LSSI) from the customer area. Since it again provides the registration or new customer subscription screen, where the box can indeed be activated, but still does not provide a screenshot of the customer area, which is accessed from the login screen, where the aforementioned newsletter activation box does not exist, as has been duly noted in the present proceedings.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

15/19

For all the above reasons, the allegations made against the resolution proposal must also be dismissed, as it is understood that the respondent has not proven that the claimant requested the 3 subscriptions to the newsletter and offers service on which it bases its defense. Therefore, it must be understood that Article 21.1 of the LSSI was violated by sending 13 unsolicited commercial communications to the claimant after he had requested to unsubscribe (expressing his opposition to receiving them) on March 20 and 23, 2023.

V

Infringing conduct: Non-compliance with Article 21 of the LSSI. Prohibition of unsolicited or expressly authorized commercial communications

It can be confirmed that the respondent has violated the provisions of Article 21 of the LSSI, for the reasons set out in Legal Grounds II to IV of this Resolution.

As indicated, Article 21 of the LSSI generally prohibits providers of information society services from making unsolicited commercial communications or those expressly authorized by the recipients of these services, based on the following concepts defined in its Annex, sections a), c), d), and f):

“a) Information Society Service: any service normally provided for remuneration, at a distance, by electronic means, and at the individual request of the recipient. The concept of information society service also includes services not paid for by their recipients, to the extent that they constitute an economic activity for the service provider.

The following are considered information society services, among others, and provided they represent an economic activity:

1. The contracting of goods or services by electronic means.
2. The organization and management of auctions by electronic means or virtual markets and shopping centers.
3. The management of online purchases by groups of people.
4. The sending of commercial communications.
5. The provision of information by telematic means.

Services that do not meet the characteristics indicated in the first paragraph of this section will not be considered information society services, particularly the following:

1. Services provided by means of voice telephony, fax, or telex.
2. The exchange of information by means of email or other equivalent electronic communication means for purposes unrelated to the economic activity of those who use it.
3. Television broadcasting services (including quasi-video on demand services), as contemplated in Article 3.a) of Law 25/1994, of July 12, which incorporates into the Spanish legal system Directive 89/552/EEC of the Council, of October 3, on the coordination of certain legal, regulatory, and administrative provisions of the Member States relating to the exercise of television broadcasting activities, or any other that replaces it.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

16/19

4. The services of sound broadcasting, and
5. The television teletext and other equivalent services such as electronic program guides offered

through television platforms.”

c) Service provider of the information society: “natural or legal person that provides a service of the information society.”

d) Recipient is the “natural or legal person that uses, whether or not for professional reasons, a service of the information society.”

f) “Commercial communication”: any form of communication aimed at the promotion, directly or indirectly, of the image or of the goods or services of a company, organization, or person engaged in a commercial, industrial, artisanal, or professional activity.

For the purposes of this Law, data that allows direct access to the activity of a person, company, or organization, such as the domain name or email address, will not be considered commercial communication, nor will communications regarding the goods, services, or image offered when they are produced by a third party and without economic compensation.”

From the above, it follows that when commercial communications are sent in the exercise of an economic activity, services of the information society are being provided, with commercial communication defined as any form of communication (including email) aimed at the direct or indirect promotion of the image, goods, or services of a company, organization, or person engaged in a commercial activity, as is the case of the entity being claimed, whose corporate purpose is electronic commerce, providing telephone or internet sales services through its website allzone.es, of a wide variety of electronic products (telephony, computers, appliances, smartwatches, televisions, and sound, etc.), as well as home products and leisure and free time services (travel).

In the present case, the regime provided for in the LSSI can be applied, with the emails submitted by the claimant having the character of information society services, specifically, commercial communications, for the purposes provided in Annex a) and f) of the LSSI, since all of them consisted of inviting the claimant to participate in raffles of electronic products such as mobile phone packs and tablets, as well as raffles for trips. All of them are services offered for sale on the website of the defendant, which are promoted with a commercial intention, so they are commercial communications. In this case, the defendant itself acknowledges in its allegations of 02/11/23 and 9/5/24 that it sends commercial communications to customers who authorize or request them, having a computer system that records the registrations and cancellations of its customers regarding the subscription service of the news bulletin that can be classified as “spam” emails. And it acknowledges having sent all the emails submitted by the claimant, with neither the dates of sending nor their content being a contentious issue in this case.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

17/19

Therefore, when the defendant sends this type of commercial communications, there is no doubt that it must comply with the requirements set forth in the LSSI, in addition to those provided in the personal data protection regulations, as it is also responsible for the processing of the personal data of customers who contract its products or subscribe to its news and offers bulletin. And it has not succeeded in proving that it obtained the prior consent of the claimant to send him the 13 commercial communications received, after requesting the cancellation, opposing the receipt of the same.

VI

Typification and qualification of the infringing conduct

Title VII of the LSSI under the heading “Infringements and sanctions” contains the sanctioning regime applicable in the event that any of the infringements contained in the infringement table included therein occurs.

Specifically, Article 37 specifies that “providers of information society services are subject to the sanctioning regime established in this Title when this Law is applicable to them.”

As previously stated, in accordance with the evidence available and the instruction carried out, it is considered that the facts presented violate the provisions of Article 21 of the LSSI, with the entity being

claimed committing a minor administrative infringement typified in Article 38. 4.b) of the LSSI, according to the following:

“d) The sending of commercial communications by email or other equivalent electronic communication means when the requirements established in Article 21 are not met and do not constitute a serious infringement.”

VII

Sanction

In the case of a minor infringement, it may be sanctioned with a fine of up to 30,000 euros, in accordance with Article 39.1 c) of the LSSI, which stipulates the following:

“1. For the commission of the infringements included in the previous article, the following sanctions will be imposed: (...)

c) For the commission of minor infringements, a fine of up to 30,000 euros.”

Furthermore, it is appropriate to graduate the sanction to be imposed according to the following criteria established in Article 40 of the LSSI:

“The amount of the fines imposed will be graduated taking into account the following criteria:

a) The existence of intent.

b) The period of time during which the infringement has been committed.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

18/19

c) Recidivism for committing offenses of the same nature, when declared as such by a firm resolution.

d) The nature and extent of the damages caused.

e) The benefits obtained from the infringement.

f) The volume of business affected by the committed infringement.

g) Adherence to a code of conduct or an applicable advertising self-regulation system regarding the committed infringement, which complies with the provisions of Article 18 or in the eighth final provision and has been favorably reported by the competent body or bodies.

In this case, the circumstance for the graduation of the sanction provided in section b) of this provision, referring to the "period of time during which the infringement has been committed," is applicable, since the claimant proves the sending of 13 unsolicited emails by the claimant, starting from when he first opposed receiving such communications, requesting to unsubscribe on March 20, 2023. According to the evidence, he continued receiving commercial communications from March 23, 2023, and despite requesting to unsubscribe for the second time on March 23, 2023, the commercial communications continued at least until June 22, 2023.

Taking into account the facts under review and the concurrent circumstances for graduation, the proposed sanction in the initiation agreement is maintained, and it is considered that the sanction to be imposed should be an administrative fine of €3,000 (three thousand euros).

Therefore, in accordance with the applicable legislation and evaluated the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on ALL IN DIGITAL MARKETING, S.L., with NIF B88369178, for an infringement of Article 21 of the LSSI, classified in Article 38.4.d) of the LSSI, a fine of THREE THOUSAND EUROS (€3,000).

SECOND: TO NOTIFY this resolution to ALL IN DIGITAL MARKETING, S.L.

THIRD: This resolution will be executive once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the

Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

19/19

Upon receiving the notification and once it is executive, if the date of executiveness falls between the 1st and 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation proving the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

938-16012024
Mar España Martí
Director of the Spanish Agency for Data Protection
C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es